

23STCV17388 23STCV17388

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-09-09

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Case Number: 23STCV17388 Hearing Date: September 9, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Diane Franco

;

Plaintiff,

vs.

FCA US, LLC

, et al.,

Defendants.

Case No.:

23STCV17388

Hearing Date:

September 9, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Compel Production in Accordance with Statement of Compliance

MOVING PARTY: Plaintiff Diane Franco

RESPONDING
PARTY: Defendant FCA US, LLC

Motion to Compel
Production in Accordance with Statement of Compliance

The court considered the moving
and opposition papers filed in connection with this motion.

DISCUSSION

Plaintiff Diane
Franco ("Plaintiff") moves the court for an order compelling defendant FCA US, LLC ("Defendant") to produce documents in accordance with its statement of compliance in its response to Plaintiff's Requests for Production of Documents, Set One, and for sanctions.

The court denies
the motion as moot because Defendant has demonstrated that it produced documents responsive to Plaintiff's requests for production on January 28, 2026. (Cicierski Decl. ¶ 4; Ex. B; Code Civ. Proc., § 2031.320.)

The court grants Plaintiff's
request for sanctions. (Code Civ. Proc., § 2031.320, subd. (b).) "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed."

(Cal. Rules of Ct., rule 3.1348(a).) The court finds that \$962.50 (2.5 hours x \$385 per hour = \$962.50 attorney's fees) is a reasonable amount of sanctions to impose on Defendant. (Rucker Decl. ¶ 11.)

ORDER

The court denies plaintiff Diane Franco's motion to compel production in accordance with statement of compliance.

The court orders defendant FCA US, LLC to pay sanctions in the amount of \$962.50 to plaintiff Diane Franco within 30 days of the date of service of this order.

The court orders plaintiff Diane Franco to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 9, 2026

Robert B. Broadbelt III

Judge of the Superior Court